

the burden would be on Defense counsel to continue to reach out to Plaintiff after the latter ignored the former for over a month. This assertion and its premise are one reason why the Court finds the Plaintiff has failed to act with substantial justification.

Plaintiff argues that Defendant was able to depose Plaintiff in April 2026, but this does not excuse its actions in failing to meet and confer and in failing to provide code complaint responses over a four month period. The court finds that Plaintiff did not act with substantial justification.

Plaintiff's stated intention in its Opposition to provide only partial supplemental responses to Special Interrogatories Nos. 7-14 confirms that the requested discovery was not provided prior to the motion being filed, if it was provided at all.

California Rule of Court 3.1348 provides that sanctions may be imposed even if the discovery was provided after the motion to compel was filed.

The court orders Plaintiff's counsel to provide Defense counsel with code compliant answers to Special Interrogatories, Nos. 18, 19, 20, 21, 22, 23, 24, 25 and 26 within 30 days of service of notice of entry of this order on Plaintiff's counsel.

The court orders Plaintiff's counsel to pay Defendant's counsel \$100 in attorneys fees and \$60 in costs. The court finds justification for sanctions against Plaintiff but does not find the stated amount of \$1200 (\$400 for three hours of work) to be reasonable for a motion whose Memorandum of Points was pasted and copied from the Defendant's Motion concerning Form Interrogatories and was not tailored *at all* to the circumstances of the discovery dispute concerning the Special Interrogatories.

Payment is due to Defendant's counsel within 30 days after service of notice of entry of this order on all parties.

#### Issue Conferences

18. 10:00 AM CASE NUMBER: MSC21-02399

CASE NAME: SYED VS. LEITAO

ISSUE CONFERENCE

FILED BY:

**\*TENTATIVE RULING:\***

**Vacated** by the court in response to unopposed *ex parte* application. Motion to set Trial was set for hearing July 17, 2026 at 9:00 a.m., Dept. 32.

|  |
|--|
|  |
|--|

|                                  |
|----------------------------------|
| <b>Courtroom Clerk's Session</b> |
|----------------------------------|

19. 1:30 PM CASE NUMBER: C23-00634

CASE NAME: JANE DOE VS. GOLDEN GATE BELL, LLC.

ISSUE CONFERENCE IN PERSON

FILED BY:

**\*TENTATIVE RULING:\***

Issue Conference previously set for July 10, 2026 is vacated. See Line 1 above.